

STATE OF NEW YORK

3999--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. BRONSON -- read once and referred to the Committee on Corporations, Authorities and Commissions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public authorities law, in relation to establishing the mechanical insulation energy savings program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public authorities law is amended by adding a new
2 section 1885 to read as follows:

3 § 1885. Mechanical insulation energy savings program. 1. Definitions.
4 For purposes of this section:

5 (a) "Applicant" shall mean any school district, public hospital,
6 public housing building, or political subdivision as defined in the
7 general municipal law, with a building or buildings that have a poten-
8 tial need for mechanical insulation upgrades. The minimum size for any
9 single building to be considered shall be twenty thousand square feet.

10 (b) "Mechanical insulation" shall mean insulation materials, facings
11 and accessory products used for thermal requirements for mechanical
12 piping and equipment, hot and cold applications, heating, ventilation,
13 and air-conditioning applications.

14 (c) "Qualified audit" shall mean a mechanical insulation audit of a
15 building by a qualified contractor, which identifies missing, damaged or
16 improperly installed mechanical insulation. Such audit shall include an
17 estimate of installation costs along with estimated energy and cost
18 savings. Such audit shall be provided by the qualified contractor at no
19 cost to the authority or applicant.

20 (d) "Qualified mechanical insulation expenditures" shall mean the
21 purchase of insulation materials, facings and accessory products used
22 for thermal requirements for mechanical piping and equipment, hot and
23 cold applications, and heating, ventilation, and air-conditioning appli-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 cations and all associated labor costs properly allocable to on-site
2 preparation, assembly and original installation, so long as performed by
3 a qualified contractor and in accordance with sections two hundred twen-
4 ty, two hundred twenty-b and two hundred twenty-i of the labor law.

5 (e) "Qualified contractor" shall mean an insulation contractor that is
6 party to an apprenticeship agreement, as defined in section eight
7 hundred sixteen of the labor law, which is in good standing, appropriate
8 for the type and scope of work to be performed, including the minimum
9 American Society of Heating, Refrigerating, and Air-Conditioning Engi-
10 neers Standard 90.1-2007, providing the energy standard for buildings
11 except low-rise residential buildings.

12 2. The authority shall establish an audit process whereby an applicant
13 may request a qualified audit. Such audit, if approved by the authority,
14 shall be provided to the applicant at no cost.

15 3. As part of this program, the authority shall issue grants for
16 applicants that have completed a qualified audit, which will cover one
17 hundred percent of the qualified mechanical insulation expenditures.

18 4. The authority shall establish rules and regulations and identify
19 eligible funding to create the mechanical insulation energy savings
20 program and create guidelines for preferred applicants, buildings and
21 energy savings.

22 § 2. This act shall take effect immediately.